

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

R. Belligan, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: June 3, 2026

TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

IN-PERSON APPEARANCES: Department 13 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court **strongly** encourages **in-person** appearances for any **contested** law-and-motion matter.

REMOTE APPEARANCES: Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 13 uses UDC as its remote platform. Please click on this link if you need to appear remotely, and then scroll down to click the link for Department 13:

<https://santaclara.courts.ca.gov/online-services/remote-hearings>

The Court **strongly** encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) CourtCall is no longer available.

RECORDING IS PROHIBITED: State and local court rules prohibit recording court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

COURT REPORTERS ARE NOT PROVIDED: If any party wishes to have a court reporter, the appropriate forms and process can be found here:

https://www.scsccourt.org/general_info/court_reporters.shtml.

SCHEDULING MOTION HEARINGS: Go to <https://reservations.scsccourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

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LINE #	CASE #	CASE TITLE	RULING
LINE 1	23CV417950	FREDI CUELLAR et al vs MATILDA TRAINOR et al	Motion: Compel Further Responses Ctrl Click (or scroll down) on Line 1 for tentative ruling.
LINE 2	23CV417950	FREDI CUELLAR et al vs MATILDA TRAINOR et al	Motion: Compel Further Responses Ctrl Click (or scroll down) on Line 1 for tentative ruling.
LINE 3	24CV446807	RYAN KOLSTAD vs SARAH EBRO et al	Motion: Sanctions Ctrl Click (or scroll down) on Line 3 for tentative ruling.
LINE 4	25CV466415	Corey M vs DAMIAN HERNANDEZ, et al	Motion: Compel Further Responses Ctrl Click (or scroll down) on Line 4 for tentative ruling.
LINE 5	25CV473157	Shabana Pirani vs Costco Warehouse Corporation	Motion: Strike Ctrl Click (or scroll down) on Line 5 for tentative ruling.
LINE 6	25CV473159	Shabana Pirani vs Petrinovich Pugh & Co et al	Motion: Strike Ctrl Click (or scroll down) on Line 6 for tentative ruling.

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LINE #	CASE #	CASE TITLE	RULING
LINE 7	25CV481591	Atul Shinde vs PLM Management Services, Inc. et al	Hearing: Demurrer Ctrl Click (or scroll down) on Line 7 for tentative ruling.
LINE 8	24CV439297	Randall Ballard vs Taya Munson et al	Motion to Appoint Successor in Interest Plaintiff's unopposed motion for an order for the appointment of JONDALYNN BALLARD as the Successor-In-Interest to deceased Plaintiff RANDALL BALLARD is GRANTED. Plaintiff shall prepare and submit the final order, accompanied by the necessary Form EFS-020, within 5 days of the date of the hearing.

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LINE #	CASE #	CASE TITLE	RULING
		9:01 CALENDAR	
9:01 LINE 1	21CV377860	George Jones vs Michael Liddle et al	Hearing: Claim of Exemption & Petition for Judgment The currently unopposed Opposition to the Claim of Exemption and Petition for Judgment Determining Third Party Claims are GRANTED. Assignee shall prepare and submit the final order and proposed judgment, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.
9:01 LINE 2	24CV452257	Crown Asset Management, LLC vs Artemio Ramos	Motion: Withdraw as Attorney Good cause appearing, the unopposed motion is GRANTED. The Court will sign the previously submitted Form MC-053. The 6/15/2026 court trial is VACATED. The matter shall be set for a Trial Setting Conference on June 17, 2026, at 11:00 a.m. in Department 13. Withdrawing attorney shall give notice of the Court's rulings and orders within 2 days of the date of the hearing on the motion to withdraw.

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Calendar Line 1 & 2

Case Name: *FREDI CUELLAR et al vs MATILDA TRAINOR et al*

Case No.: 23CV417950

Defendants move to compel further responses to Requests for Production, Set Two, and Special Interrogatories, Set Two.

Meet and Confer

To begin, the Court is not persuaded by Plaintiff's assertion that Defendants failed to properly meet and confer. In fact, the Court finds Plaintiff to be the more guilty party in this regard.

Although the Court is never impressed with meet and confer correspondence couched in terms of a "demand" and/or setting a 24-hour "deadline," Defendants' correspondence did set forth the bases for their concerns, and after the process began, Plaintiff more than once indicated that a response to Defendants' meet and confer effort would be provided - first prior to February 6, 2026, then by February 13, 2026. The promised response did not materialize. It appears that it was not until February 20, 2026, the final date for filing the motion to compel, that Plaintiff's counsel stated he could "talk." Nowhere in the correspondence before the Court did Plaintiff's counsel raise or specifically allude to any of his points in opposition to Defendants' position that the Court's May 23, 2025, order makes resolution of the issues simple. Waiting until the date the motion must be filed, two weeks after a response was initially promised, and then simply offering a live or telephonic conversation was too little and too late. Plaintiff is correct that as of January 1, 2026, a motion to compel shall be accompanied by a declaration showing "a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040(a).) In lieu of demands and deadlines, Defendants' correspondence should have included such an offer, which could have then been memorialized in a compliant declaration if things could not be resolved. Under these circumstances, however, the Court will not hold Defendants to the letter of section 2016.040. Although these motions were filed February 20, 2026, the initial meet and confer process began in 2025. More importantly, Defendants here need not be held to an in person, telephonic, or videoconference standard to informally resolve each issue presented by the motion when Plaintiff never informs them what the issues are despite promises to do so.

To the contrary, the Court finds no tangible effort by Plaintiff to engage in a substantive meet and confer process until the date that the motion was due. This alone may be sufficient grounds to grant the motion. But here, the Court also believes Defendants should prevail on the merits.

Requests for Production

Defendants seek an order compelling production of the full, unredacted documents for RPD Nos. 40 and 41, redactions that conceal payor, booking, and traveler companion details.

Plaintiff represented that "subject to" objection he would comply and produce documents for RPD Nos. 40-41. Having agreed to produce, Plaintiff was not entitled to then redact responsive information without at minimum taking certain steps. Here, Plaintiff did not

identify with particularity any information to which any objection was being made, and as to any assertions of privilege, Plaintiff's responses did not provide sufficient factual information for Defendants to evaluate the merits of that claim, including, if necessary, a privilege log. (Code Civ. Proc., § 2032.240.) Plaintiff gave no explanation for the redactions, until opposing this motion.

In response to this motion, Plaintiff argues, "Defendants have not shown specific good cause for disclosure of every redacted field, including financial account numbers, booking or confirmation codes, ticket numbers, or unrelated itinerary metadata." But Plaintiff gave and has given no basis for the redactions, and as the Court has previously noted, "[u]nder the Legislature's 'very liberal and flexible standard of relevancy,' any 'doubts as to relevance should generally be resolved in favor of permitting discovery.'" (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 542, citing *Pacific Tel. & Tel. Co. v. Superior Court* (1970) 2 Cal.3d 161, 173.) The relevance of this line of inquiry *for discovery purposes* remains apparent, as it did at the motion to compel answers at deposition. Defendants may explore the possibility of the existence of bias, interest, motive, information related to claimed damages for these expenses (even if minimal), and credibility regarding Plaintiff, percipient witnesses, and treating experts.

The Court can see no issues with the majority of the redacted categories on their face, such as booking reference, taxes and fees, flight confirmation #, Eticket #, airline confirmation, total, ticket number, and detailed charges. The Court can only speculate that "billing details" may contain the "account-number information and other highly sensitive identifiers" Plaintiff seems concerned about. The section regarding the phone number and email attributed to Plaintiff on the documents may be legitimately protected from broad dissemination, although that hardly seems like much of a concern either. Regardless, any concerns regarding the appearance of this information on the face of the documents can be addressed with a protective order.

Accordingly, Defendants' motion to compel production of the full, unredacted documents for RPD Nos. 40 and 41 is GRANTED, subject to a mutually agreed upon protective order.

Special Interrogatories

Plaintiff served his Responses to Special Interrogatories, Set Two, dated December 9, 2025, serving objections only to SROGs 70–77 and 79–82. The Court has considered the objections and they are OVERULED. The Court finds the inquiries sufficiently relevant for discovery purposes and the inquiries themselves, seeking only factual information regarding who paid for things and how much those things cost, does not implicate any privilege, and Plaintiff fails to establish any persuasive argument to the contrary.

Defendants motion to compel Plaintiff to provide further objection-free responses to Special Interrogatory Nos. 70–77 and 79–82 is GRANTED.

Sanctions

In their memorandum in support of the motion to compel further responses to special interrogatories, Defendants request monetary sanctions against Plaintiff and his counsel in the amount of \$1,000. Defendants make no such request in their motion for further responses to

requests for production. In addition, neither of Defendants' notices of motion make requests for sanctions. Accordingly, Defendants' requests for sanctions are DENIED.

Conclusion

Defendants' motion to compel production of the full, unredacted documents for RPD Nos. 40 and 41 is GRANTED, subject to a mutually agreed upon protective order. The parties shall meet and confer regarding the form of protective order and Plaintiff shall provide the ordered discovery within 20 days of the date of the hearing.

Defendants motion to compel Plaintiff to provide further objection-free responses to Special Interrogatory Nos. 70–77 and 79–82 is GRANTED. Plaintiff shall provide the ordered discovery within 20 days of the date of the hearing.

Defendants' requests for sanctions are DENIED.

Defendants shall prepare and submit the final order, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.

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Calendar Line 3

Case Name: *RYAN KOLSTAD vs SARAH EBRO et al*

Case No.: 24CV446807

Plaintiff's motion for sanctions pursuant to Code of Civil Proc., §§ 128.7(b)(1) and (b)(3) is DENIED.

“Code of Civil Procedure section 128.7 should be utilized only in “the rare and exceptional case where the action is clearly frivolous, legally unreasonable or without legal foundation, or brought for an improper purpose.” (*Operating Engineers Pension Trust v. A-C Co.* (9th Cir. 1988) 859 F.2d 1336, 1344.)” (*Kumar v. Ramsey* (2021) 71 Cal.App.5th 1110, 1121.) Although Plaintiff's motion is unopposed, the Court does not find that the self-represented Defendant's assertions and arguments made in support of her motion to quash, although unsuccessful, rise to the level of sanctionable conduct under section 128.7.

The Court will prepare the final order.

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Calendar Line 4

Case Name: *Corey M v. Damian Hernandez, et al.*

Case No.: 25CV466415

Plaintiff seeks an order compelling Defendant XPO Logistics to provide further responses to interrogatories and requests monetary sanctions of \$14,370.00.

The Court gleans from parties' papers that the following interrogatories were in dispute: Special Interrogatories 47-52, Special Interrogatory 65-66, and Form Interrogatories - Employment Law No. 216.1.

With respect to Special Interrogatories 47-52 and Form Interrogatories - Employment Law No. 216.1, the Court finds that Defendant has provided further responses to all the disputed interrogatories. Plaintiff's contention that Defendant's responses to Special Interrogatories Nos. 65-66 remain deficient, based solely on Plaintiff's disbelief regarding their completeness, is unpersuasive. The initial responses are no longer operative, and Defendant XPO has sufficiently addressed the relevant concerns. Thus, the Court finds that there is nothing left to accomplish by way of this motion, and there is nothing the Court can order that would or should result in more or different production. In this sense, Plaintiff's Motion to Compel Further Responses is MOOT.

Plaintiff also seeks sanctions against Defendant in the amount of \$14,370.00. The request is well taken and is GRANTED. Defendant had a responsibility to provide responses as agreed upon between the parties by January 16, 2026. (See Decl. Levy, Exhibit 9). Defendant's failure to do so made bringing this motion necessary. Even after a party provides discovery responses, the court has authority to grant sanctions, even if it denies the motion to compel responses "as essentially unnecessary, in whole or in part." (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409.) However, the Court finds Plaintiff's claimed eleven (11) hours to prepare the motion, anticipated six (6) hours for a reply, and anticipated one (1) hour to prepare and attend the hearing on this motion excessive under the circumstances. Accordingly, Defendant shall pay Plaintiff monetary sanctions in the amount of \$6,360.00 within 20 days of the date of service of the final order.

Plaintiff shall prepare and submit the final order, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.

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Calendar Line 5

Case Name: *Shabana Pirani v. Costco Wholesale Corporation*

Case No.: 25CV473157

Before the Court is Plaintiff Shaban Pirani's ("Plaintiff") motion to strike Defendant Costco Wholesale Corporation's ("Defendant") answer and request for entry of default. Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

This is an action for damages arising out of a vehicle collision that purportedly occurred in a Costco parking lot. Plaintiff initiated this action on August 21, 2025, with the filing of a Judicial Form Complaint which asserts a variety of claims, including negligence. On October 22, 2025, Defendant filed its Answer to the Complaint. On January 26, 2026, Plaintiff filed the instant motion to strike Defendant's Answer and request for entry of default. Defendant opposes the motion.

As an initial matter, the Court admonishes Plaintiff that she was *required* under Code of Civil Procedure section 435.5 to meet and confer with Defendant prior to filing the instant motion. (See Code Civ. Proc., § 435.5, subd. (a).) Plaintiff has not filed a declaration attesting to having met and conferred with Defendant as required by the statute, and Defendant's counsel's own declaration affirms that no such meet and confer took place. (See Declaration of Brian D. Johnson in Support of Opposition to Motion to Strike and for Entry of Default ("Johnson Decl."), ¶ 2.) Despite this failure, which could be dispositive, the Court will address the merits of Plaintiff's motion in the interest of judicial economy.

Plaintiff's motion to strike Defendant's Answer is predicated on the following arguments: (1) she was never served with the Answer; (2) no proof of service for the Answer was filed with the Court; (3) Defendant's counsel "has no valid appearance and is subject to a separate default proceeding"; (4) and Defendant has failed to properly appear or defend this action. The Court does not find any of these arguments persuasive.

First, a code-compliant proof of service was filed with the Court on October 22, 2025 (see Code Civ. Proc., § 1013a), which reflects that service of the Answer was effectuated on Plaintiff by mail that day to the address provided by her, which is notably the same address that she lists in the header of this motion. This filing clearly defeats Plaintiff's contention that no proof of service was ever filed with the Court. Generally, the filing of a proof of service that complies with applicable statutory requirements creates by itself a rebuttable presumption that service was proper. (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1441.) The rebuttable presumption can only be dispelled by contradictory evidence. (See *Craig v. Brown & Root* (2000) 84 Cal.App.4th 416, 421.) Plaintiff provides contradictory evidence in the form of her declaration, wherein she states that she was not served with the Answer and only discovered it was filed by reviewing the Court docket. (Declaration of Shabana Pirani in Support of Motion to Strike ("Pirani Decl."), ¶ 2.)¹

¹ The Court notes that any independently filed and procedurally unattached and inappropriate declarations filed before the notice of this motion, which was filed on January 26, 2026, are not before the Court.

Once the presumption of service is dispelled, the trier of fact shall determine the existence or non-existence of the fact from the evidence and any appropriate inferences that may be drawn from it. (*Bonzer v. City of Huntington Park* (1993) 20 Cal.App.4th 1474, 1479.) Thus, once the presumption of proper service is gone, the trier of fact must weigh the evidence and decide whether or not service was effected pursuant to the applicable statutory requirements. (See *Craig, supra*, 84 Cal.App.4th at 421-22 [“[I]f a party proves that a letter was mailed, the trier of fact is required to find that the letter was received in the absence of any believable contrary evidence. However, if the adverse party denies receipt, the presumption is gone from the case. The trier of fact must then weigh the denial of receipt against the inference of receipt arising from proof of mailing and decide whether or not the letter was received.”].)

The Court is not persuaded by Plaintiff’s assertion of non-service. First, the October 22nd proof of service indicates that service was also made via email to the address listed by Plaintiff on the heading of the instant motion (shabana.devani28@gmail.com), and Defendant submits a copy of the actual email that attached a copy of the Answer and was sent to Plaintiff’s listed email address. (Johnson Decl., ¶ 4, Exhibit B.) A PDF attachment is clearly visible in this email, which is titled “ANSWER,” which is strong circumstantial evidence that the attachment was Defendant Costco’s Answer. (*Id.*, ¶ 3, Exhibit A.) While service by email is not the issue here, this evidence supports a inference that all correspondence regarding the delivery of the Answer was occurring as would be expected. Second, the veracity of all of the contents of Plaintiff’s declaration are called into question by several clear inaccuracies contained within, including where Plaintiff states that attorney S.J. Harmon appeared at a Case Management and that that appearance was “quashed by court order.” (Pirani Decl., ¶ 5.) Plaintiff failed to submit this order, which makes sense because the Court made no such order, and there is no indication that such an order exists. (Johnson Decl., ¶ 5.)

Troublingly, Plaintiff also states in her declaration that attorney Hammon “failed to respond” to a separate “civil complaint” that she filed against her for “improper appearance.” (Pirani Decl., ¶ 6.) But this is demonstrably false because, as Defendant explains, Hammon filed an anti-SLAPP motion in response to Plaintiff’s complaint against her, and such a motion is a responsive pleading. (Johnson Decl., ¶ 6, Exhibit 6; *Britts v. Superior Court* (2006) 145 Cal.App.4th 1112, 1118 [stating that an anti-SLAPP motion may be filed “in lieu of responding to the complaint.”].) In any event, even if what Plaintiff said was true, it has no bearing on whether Defendant’s answer should be stricken in this action.

Given the foregoing, Plaintiff’s motion to strike Defendant’s answer and request for entry of default is DENIED.

As for Defendant’s request for sanctions pursuant to Code of Civil Procedure section 128.5 (“Section 128.5”) on the ground that Plaintiff’s motion is frivolous and made in bad faith, the Court must deny this request based on Defendant’s failure to comply with the separate notice and safe harbor requirements of Section 128.5, subdivision (f). However, the Court cautions Plaintiff that had the foregoing procedural requirements been met, it *very well might* have imposed sanctions against her barring any form of unlikely justification. As Defendant notes, this is not the first time Plaintiff has attempted to strike its Answer, and her actions in this regard have included making demonstrably inaccurate representations to the Court. Plaintiff’s first request for entry of default was denied by clerk on November 4, 2025 based on Defendant having filed its Answer on October 22nd. Plaintiff’s request was

supported by her declaration which contained misguided assertions that Defendant had failed to appear and that the Matheny Sears law firm did not represent it.

Despite the foregoing denial, Plaintiff *again* attempted to strike Defendant's Answer on November 10, 2025, filing a declaration asserting once again that the Matheny Sears firm was not representing Defendant, claiming that she was not served with the Answer, and claiming the Answer was filed late. She filed a further declaration on November 25, 2025, wherein she falsely stated that the Answer had been "struck and quashed." Plaintiff filed yet another declaration on December 1, 2025, falsely claiming that the Court had "properly quashed and struck" Defendant's Answer and seeking Defendant's default damages of \$5,250,000. On December 19, 2025, the Court clerk denied entry of default, informing Plaintiff for a *second* time that Defendant had filed an Answer on October 22nd.

Plaintiff nevertheless again pursued entry of default with the instant motion based on suspect factual contentions. It is clear to the Court that Plaintiff is attempting to obtain a default and judgment without litigating the underlying merits of her claims and is doing so by making the instant motion and multiple prior requests for entry of default in contravention of law and legal authority, which at some point will transition to bad faith if it has not already. Sanctions may be imposed under Section 128.5 for "actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay" (Code Civ. Proc., § 128.5, subd. (a)) and "actions or tactics" in includes the filing of motions" (Code Civ. Proc., § 128.5, subd. (b)(1)). "Frivolous" means "totally and completely without merit or for the sole purpose of harassing an opposing party." (Code Civ. Proc., § 128.5, subd. (b)(2).) The Court recognizes that Plaintiff is self-represented, but such individuals are held to the same standards as attorneys. (See *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985 [requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation"].)

The Court will prepare the final order.

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Calendar Line 6

Case Name: *Shabana Pirani v. Petrinovich Pugh & Co.*

Case No.: 25CV473159

Before the Court is Plaintiff Shabana Pirani's ("Plaintiff") motion to strike Defendant Petrinovich Pugh & Co.'s ("Defendant") answer and request for entry of default. Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

This is an action which appears to arise out of Defendant's decision to terminate Plaintiff's employment. Plaintiff initiated this action on August 21, 2025, with the filing of the Judicial Form Complaint which asserts a variety of claims, including negligence and an unspecified intentional tort. On October 9, 2025, Defendant filed its Answer to the Complaint. On January 26, 2026, Plaintiff filed the instant motion to strike Defendant's Answer and request for entry of default. Defendant opposes the motion.

As an initial matter, the Court admonishes Plaintiff that she was *required* under Code of Civil Procedure section 435.5 to meet and confer with Defendant prior to filing the instant motion. (See Code Civ. Proc., § 435.5, subd. (a).) Plaintiff has not filed a declaration attesting to having met and conferred with Defendant as required by the statute. Despite this failure, which could be dispositive, the Court will address the merits of Plaintiff's motion in the interest of judicial economy.

Plaintiff's motion to strike Defendant's Answer is predicated on the following arguments: (1) the Answer is untimely; (2) the Answer was not properly served on Plaintiff; (3) no proof of service for the Answer was filed with the Court; and (4) Defendant's counsel is "unauthorized" and may not appear on Defendant's behalf because they did not file a notice of appearance. The Court does not find any of these arguments persuasive.

First, Code of Civil Procedure section 412.20, subdivision (a)(3), provides that a defendant's answer to a complaint is due within 30 days after its service. Pursuant to Code of Civil Procedure section 1010.6, subdivision (b)(3), and Santa Clara County Superior Court Local Rule No. 6, a filing must be received by the Court by 5 p.m. to have it deemed filed the same day. According to the Court's filing system, Defendant's Answer was submitted for filing on October 9, 2025 at 4:31 p.m., which is 30 days after Defendant was served with the Complaint on September 9, 2025. Plaintiff urges that this filing was "after hours" and therefore must be deemed filed the next court day. But this is incorrect as a matter of law, and Plaintiff appears to be relying on *non-existent* case law, which concerns the Court,² as well as irrelevant court rules.³ The Court recognizes that Plaintiff is self-represented, but cautions her that such individuals are held to the same standards as attorneys. (See *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985 [requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties

² Plaintiff cites *Keller v. Jordan* (2005) 126 Cal.App.4th 1407, 1414, which the Court was unable to locate.

³ Plaintiff cites California Rules of Court, rule 2.261(a) for the proposition that documents filed after court hours are deemed filed on the next court day. Not only does rule 2.261 not have a subdivision (a), but it does not relate to when a document submitted for filing is to be deemed filed. Instead, it merely provides that courts that participated in pilot programs for electronic filing and forms generation under former rule 981.5 are authorized to continue to modify Judicial Council forms for that purpose.

to litigation”].) Relying on fictitious legal authority is potentially sanctionable conduct. (See *In re Domestic Partnership of Torres Campos & Munoz* (2026) 118 Cal.App.5th 1112, 1129.) That said, Defendant’s Answer was clearly timely and therefore will not be struck on this basis.

As for the service issue, Plaintiff argues that the Answer should be stricken because she did not consent to electronic service. However, a code-compliant proof of service was filed with the Court on October 9, 2025 (see Code Civ. Proc., § 1013a), which reflects that service of the Answer was effectuated on Plaintiff by mail that day to the address provided by her, which is notably the same address that she lists in the header of this motion. This filing clearly defeats Plaintiff’s contention that no proof of service was ever filed with the Court. Generally, the filing of a proof of service that complies with applicable statutory requirements creates by itself a rebuttable presumption that service was proper. (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1441.) The rebuttable presumption can only be dispelled by contradictory evidence. (See *Craig v. Brown & Root* (2000) 84 Cal.App.4th 416, 421.) In her declaration filed in support of her motion,⁴ Plaintiff argues that Defendant’s counsel admitted to serving her electronically, but nowhere in her declaration does she address whether she received the copy of the Answer purportedly served on her via mail. Thus, she has not provided contradictory evidence which dispels the presumption of proper service, and the Court will not strike the Answer on this basis.

As for Plaintiff’s remaining argument, she cites no applicable legal authority to support her assertion that Defendant and its counsel were not authorized to participate in this action due to not filing a notice of appearance.⁵ Defendant timely filed its Answer in this case, which served as its notice of appearance in this matter, and there is simply no reason to strike it and grant Plaintiff’s request for entry of default. Therefore, Plaintiff’s motion to strike Defendant’s answer and request for entry of default is DENIED.

The Court will prepare the final order.

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⁴ The Court notes that any independently filed and procedurally unattached and inappropriate declarations filed before the notice of this motion, which was filed on January 26, 2026, are not before the Court.

⁵ Plaintiff relies on Code of Civil Procedure section 285, subdivision (b), to support her position that attorneys must file a Notice of Appearance before participating in a case. This is inapplicable as it pertains to written substitutions of attorney. She additionally relies on *People ex rel. Dept. of Transportation v. Reed* (1980) 108 Cal.App.3d 538, 542 which does not appear to exist.

Calendar Line 7

Case Name: *Atul D. Shinde v. PLM Loan Management Service, Inc. et al.*

Case No.: 25CV481591

Before the Court is Defendant PLM Loan Management Services, Inc.’s (“Defendant” or “PLM”) demurrer to the first, second, third, fourth, fifth, sixth, seventh, and eighth causes of action alleged in the complaint filed by Plaintiff Atul D. Shinde (“Plaintiff” or “Shinde”).

This is an action to quiet title. According to the allegations of the complaint, Shinde has continuously owned and occupied real property located at 22764 Majestic Oak Way, Cupertino, California, 95014 (the “Property”) since 2004. (Complaint, ¶ 12.) The Property was encumbered by two deeds of trust: a first deed of trust in favor of Quicken Loans and a second-position deed of trust in favor of TechCU (“TCU”) securing a debt with a balance of approximately \$56,000, plus accrued interest, fees, and foreclosure costs totaling approximately \$64,485.62 (the “Second Lien”). (*Id.* at ¶ 13.) TCU initiated nonjudicial foreclosure proceedings. (*Id.* at ¶ 15.) Ole M. Pedersen (“Pedersen”) submitted a winning bid of \$308,203. (*Id.* at ¶ 17.) After satisfaction of the Second Lien and other costs, surplus proceeds of approximately \$233,000 remain. (*Ibid.*)

Shinde filed the complaint on December 10, 2025, alleging the following causes of action: (1) quiet title – no trustee authority after reconveyance; (2) quiet title and voidable sale – statutory violations and procedural irregularities; (3) cancellation of instruments; (4) equitable set-aside of trustee’s sale; (5) declaratory relief; (6) wrongful foreclosure; (7) injunctive relief; and (8) violation of automatic bankruptcy stay.

The Court GRANTS judicial notice of Exhibits 1 through 9 to PLM’s request for judicial notice under Evidence Code section 452, subdivisions (c) and (d). (PLM’s Request for Judicial Notice (“RJN”), Exs. 1-9; see Evid. Code, ¶ 452, subds. (c), (d).) The Court takes judicial notice of the existence of these exhibits but does not take notice of the truth of any disputed contents of these exhibits. (See *Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 80-81 [truth of contents of court records cannot be judicially noticed]; *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 194 [“While courts may notice official acts and public records, we do not take judicial notice of the truth of all matters stated therein.”], internal citations and quotation marks omitted.)

The Court OVERRULES PLM’s demurrer to the entire complaint on the grounds that Code of Civil Procedure section 430.10, subdivision (c) bars this action. A party may demur on the ground that there “is another action pending between the same parties on the same cause of action.” (Code Civ. Proc., § 430.10, subd. (c).) Shinde’s opposition notes that the complaint Shinde filed in case no. 25CV468701 has been dismissed in its entirety. (Shinde’s Opposition to PLM’s Demurrer (“Opposition”), p. 3:24-27.) PLM has “withdrawn” its argument on this basis. (See PLM’s Reply in Support of Demurrer (“Reply”), p. 10:11-16.)

The Court SUSTAINS PLM’s demurrer to the complaint’s first cause of action with 10 days’ leave to amend. The purpose of a quiet title action is to establish title against adverse claims or interest in real property. (Code Civ. Proc., § 760.020.) Civil Code section 2941 states that “the beneficiary or the assignee of the beneficiary shall execute and deliver to the trustee the original note, deed of trust, request for a full reconveyance, and other documents as

may be necessary to reconvey, or cause to be reconveyed, the deed of trust. . . . The trustee shall execute the full reconveyance and shall record or cause it to be recorded . . . [i]f the trustee has failed to execute and record, or cause to be recorded, the full reconveyance . . . the beneficiary, upon receipt of a written request by the trustor or trustor's heirs, successor in interest, agent, or assignee, shall execute and acknowledge a document pursuant to Section 2934a substituting itself or another as trustee and issue a full reconveyance.” (Civ. Code § 2941, subds. (b)(1), (2).) In other words, while it is the responsibility of the beneficiary or assignee of the beneficiary to request that a reconveyance be effectuated, it is the responsibility of the trustee to ultimately execute and record the reconveyance. (*Ibid.*) Under Civil Code section 2934a, the trustee “under a trust deed upon real property or an estate for years given to secure an obligation to pay money . . . may be substituted by the recording . . . [o]nce recorded, the substitution shall constitute conclusive evidence of the authority of the substituted trustee or their authorized agents to act pursuant to this section . . .” (Civ. Code, § 2934a, subds. (a), (d)(4).)

The complaint's first cause of action is problematic under both Civil Code sections 2941 and 2934a. The complaint alleges that TCU “recorded a Full Reconveyance, extinguishing the deed of trust. *As beneficiary*, [TCU] possessed the authority to reconvey under Civil Code § 2941(b). Upon reconveyance, PLM's power of sale was terminated. A foreclosure conducted after reconveyance is void, not merely voidable.” (Complaint, ¶¶ 50-51, emphasis added, internal citation omitted.) Similarly, the complaint alleges that on July 29, 2025, “the beneficiary, [TCU] recorded a Full Reconveyance . . .” (*Id.* at ¶ 1.) Exhibit A, the reconveyance, was signed and recorded by TCU. (*Id.* at ¶ 1, Ex. A.) The complaint does not allege that TCU, *as trustee*, executed and recorded the full reconveyance, as required by Civil Code section 2941. This allegation forms the basis of the complaint's first cause of action. (Complaint, ¶¶ 50-54.)

The complaint further alleges that PLM acted as a “substituted foreclosure trustee” for the Second Lien and that PLM conducted the foreclosure auction. (Complaint, ¶¶ 7, 24 [PLM “is a California corporation that acted as substituted foreclosure trustee . . .”].) Exhibit I to the complaint is a document titled “Substitution of Trustee” that states TCU “substitutes a new Trustee” —PLM—under the Second Lien. (Complaint, Ex. I.) This document appears to have been recorded on February 18, 2025. (*Ibid.*) The complaint does not appear to include any allegations challenging or contesting this substitution of trustee. Nor does it appear to allege the existence of any other foreclosure trustee or the recording of a substitute of trustee after February 18, 2025. Therefore, the Court is inclined to agree with PLM that it has been and remains the authorized trustee of record for the Second Lien, including when the foreclosure auction and sale occurred.

Shinde argues in opposition that PLM's arguments as to the first cause of action require the Court to resolve legal and factual issues that cannot be decided on demurrer. (Opposition, p. 4:1-23.) The Court is not persuaded by this argument. “We treat the demurrer as admitting all material facts properly pleaded but not contentions, deductions or conclusions of fact or law. We accept the factual allegations of the complaint as true and also consider matters which may be judicially noticed.” (*Mitchell v. California Department of Public Health* (2016) 1 Cal.App.5th 1000, 1007 (*Mitchell*), internal citation omitted.) As PLM notes on reply, the complaint pleads that TCU acted as a beneficiary when executing and recording the reconveyance. (Reply in Support of Demurrer (“Reply”), pp. 4:14-5:28; see Complaint, ¶¶ 1, 50-51.) The complaint further pleads that PLM acted as a substituted foreclosure trustee. (See

Reply, pp. 2:19-4:13; Complaint, ¶¶ 7, 24.) Exhibits attached to the complaint demonstrate the same. (See Complaint, Ex. I.) These are pleading defects on the face of the complaint. The complaint’s allegation that TCU had the authority to record a reconveyance “extinguishing the deed of trust,” as a beneficiary, is a legal conclusion that the Court does not accept as true on demurrer. (*Id.* at ¶ 50.)

The Court SUSTAINS PLM’s demurrer to the complaint’s second cause of action with 10 days’ leave to amend. The complaint’s second cause of action to quiet title alleges that in the alternative, the sale of the Property “is either void or voidable” because PLM failed to finalize the sale “before expiration of the 45-day period and after the deed of trust was extinguished. PLM prematurely distributed payoff funds to [TCU] before sale finality, violating the statutory structure of § 2924m. . . . PLM refunded the first bidder using Pedersen’s funds . . . [t]he mailed and posted NOTS omitted the beneficiary name.” (Complaint, ¶¶ 55-59.) Given these allegations, the Court agrees with PLM that the complaint’s second cause of action attempts to bring a private cause of action under Civil Code section 2924m. (MPA, p. 15:27-28; see also Civil Code, § 2924m.)

The Court further agrees with PLM that there is no private right of action for a purported violation of Civil Code section 2924m. (MPA, p. 16:10-15.) “A violation of a state statute does not necessarily give rise to a private cause of action. Instead, whether a party has a right to sue depends on whether the Legislature has manifested an intent to create such a private cause of action under the statute.” (*Lu v. Hawaiian Gardens Casino, Inc.* (2010) 50 Cal.4th 592, 596, internal citations and quotation marks omitted.) “If the Legislature intended a private right of action, that usually ends the inquiry. If the Legislature intended there be no private right of action, that usually ends the inquiry. If we determine the Legislature expressed no intent on the matter either way, directly or impliedly, there is no private right of action, with the possible exception that compelling reasons of public policy might require judicial recognition of such a right.” (*Animal Legal Defense Fund v. Mendes* (2008) 160 Cal.App.4th 136, 142, internal citations omitted.) Here, the text of Civil Code section 2924m does not appear to state a clear right to bring a private action for violations of the section. In fact, subsection (j) states: “[t]he Attorney General, a county counsel, a city attorney, or a district attorney may bring an action for specific performance or any other remedy at equity or at law to enforce this section.” (Civ. Code, § 2924m, subd. (j).) Therefore, because the statute only provides for enforcement of the section by government actors, and is silent on a private cause of action, the Court concludes that section 2924m does not provide a private right of action for violations based on the section. In opposition, Shinde provides no authority or discussion to the contrary. (See *Schulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16 [failure to address point is “equivalent to a concession”].) The authorities Shinde cites do not address the issue. (See *Applegate v. Carrington Foreclosure Services, LLC* (2025) 112 Cal.App.5th 356, 364, fn. 6 [“CFS and WSF vigorously argue there is no private right of action for alleged violations of section 2924m. We need not decide the issue because, even assuming there is a private right of action, we conclude defendants are entitled to judgment as a matter of law.”]; *Bird Rock Home Mortgage, LLC v. Breaking Ground, LP* (2025) 114 Cal.App.5th 492.)

PLM also notes that the complaint’s allegation that the “Notice of Trustee Sale omitted the beneficiary’s name” does not constitute an “irregularity” under Civil Code section 2924f. (MPA, p. 17:17-25; see also Complaint, ¶ 59 [“The mailed and posted NOTS omitted the beneficiary name . . . in violation of Civil Code § 2924f(b)(3).”].) Civil Code section 2924f,

subdivision (b)(3) does not appear to include any requirement that a posted notice of trustee sale contain the beneficiary's name or "PLM [sic] representative's signature." (Complaint, ¶ 59; Civil Code, § 2924f, subd. (b)(3).) As PLM points out, it requires that a copy of a notice of sale be posted and discusses the circumstances sufficient for posting. Again, Shinde does not address this point in opposition.

Furthermore, the Court is inclined to agree with PLM that even if Civil Code section 2924m did create a private right of action, it does not appear to the Court that the complaint sufficiently alleges a violation of the statute. The complaint alleges that the sale never became final because PLM acted to finalize the sale before the expiration of the 45-day period and after the deed of trust was extinguished by "prematurely" distributing payoff funds to TCU, engaging in a "bid substitution" process, and failing to comply with Civil Code section 2924f, subdivision (b)(3). (Complaint, ¶¶ 56-60.) The complaint alleges that the foreclosure sale occurred on June 20, 2025. (Complaint, ¶ 24.) The complaint further alleges that PLM recorded the Deed Upon Sale on August 14, 2025, forty-five days after June 20, 2025 and within 60 days of June 20, 2025. (*Id.* at ¶ 8, Ex. B; see Civ. Code, § 2924m, subd. (c); Civ. Code § 2924h, subd. (c).) Moreover, as PLM points out, Shinde has not directed the Court to any authority indicating that Civil Code section 2924m prohibits "premature" distribution of payoff funds, and, for similar reasons the Court discusses further below, the alleged "bid-substitution" scheme referenced in the complaint has not been sufficiently pled. (MPA, p. 17:15-16 ["To the extent that Mr. Shinde alleges irregularity in fund distribution, Civil Code § 2924m does not cover fund distribution."].)

The Court SUSTAINS PLM's demurrer to the complaint's third cause of action with 10 days' leave to amend. Civil Code § 3412 provides that a "written instrument, in respect to which there is a reasonable apprehension that if left outstanding it may cause serious injury to a person against whom it is void or voidable, may, upon his application, be so adjudged, and ordered to be delivered up or canceled." (Civ. Code, § 3412.) The complaint alleges that the "trustee's deed upon sale" is void or voidable because (1) it was issued after the deed was extinguished by reconveyance; (2) it was issued in willful violation of the automatic bankruptcy stay; (3) it was produced by irregular actions including statutory violations of Civil Code section 2924m; and (4) it purported to transfer title without authority. (Complaint, ¶¶ 61-62.) The Court has already discussed the complaint's "reconveyance" allegations and found them insufficient. The Court has also already discussed the complaint's allegations regarding PLM's purported statutory violations of Civil Code section 2924m and similarly found them insufficient. This leaves the complaint's allegations regarding the "bankruptcy stay." For reasons the Court discusses further below, it lacks jurisdiction to determine whether PLM has violated the alleged automatic bankruptcy stay.

The Court OVERRULES PLM's demurrer to the complaint's fourth cause of action. The complaint's fourth cause of action alleges that equity requires that the Court set aside the foreclosure sale for the following independent reasons: (1) multiple statutory violations; (2) chilled billing; (3) the sale price, 23% of fair market value, "shocks the conscience and justifies equitable relief"; and (4) Pedersen cannot claim bona fide purchaser status. (Complaint, ¶ 64.) As such, the complaint alleges four independent bases for its fourth cause of action. PLM argues that each of these grounds are insufficient for different reasons. (MPA, pp. 18:26-19:23.) PLM argues that "within this context the sale price is not too low." (*Id.* at p. 19:9-11.) PLM cites no legal authority in support of this argument, and the Court otherwise finds that whether the sale price "is not too low" is a question of fact that cannot be resolved on

demurrer. A demurrer does not lie to a portion of a cause of action. (*PH II v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682.)

The Court SUSTAINS PLM's demurrer to the complaint's fifth cause of action with 10 days' leave to amend. To qualify for declaratory relief under Code of Civil Procedure section 1060, a plaintiff's action must present two essential elements: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party. (*Lee v. Silveira* (2016) 6 Cal.App.5th 527, 546.) First, the Court notes that Shinde does not address PLM's point that the complaint's fifth cause of action is duplicative of other causes of action, a point that the Court finds persuasive given that the "availability of another form of relief that is adequate will usually justify refusal to grant declaratory relief." (*Cal. Ins. Guar. Ass'n v. Superior Court* (1991) 231 Cal.App.3d 1617, 1624; see also *General of America Insurance Co. v. Lilly* (1968) 258 Cal.App.2d 465, 470.) The complaint's fifth cause of action seeks a judicial declaration that "(a) the sale is void or voidable; (b) the TDUS conveys no title; (c) the reconveyance is valid; and (d) Pedersen is not a bona fide purchaser." (Complaint, ¶ 67.) The complaint's first cause of action seeks to quiet title on the basis that the sale of the Property is void because of TCU's alleged reconveyance; the complaint's third cause of action alleges a cause of action for "cancellation of instruments" and alleges that the "TDUS and all related instruments should be cancelled"; and the complaint's fourth cause of action requests that the Court "set aside" the sale of the Property on the basis that Pedersen cannot claim bona fide purchaser status. (*Id.* at ¶¶ 50-54, 61-65.) Furthermore, there is no basis for declaratory relief where only past wrongs are involved. (*Osseous Technologies of America, Inc. v. DiscoveryOrtho Partners LLC* (2010) 191 Cal.App.4th 357, 366, quotation marks omitted.) The complaint's fifth cause of action does not, for example, seek declarations regarding Shinde's ongoing rights to the property. Instead, it seeks to have the Court declare that an alleged past sale is invalid, that an alleged past deed upon sale conveys no title, that a past reconveyance is valid, and Pedersen is not a bona fide purchaser. (Complaint, ¶ 67.)

The Court SUSTAINS PLM's demurrer to the sixth cause of action with 10 days' leave to amend. "The elements of a wrongful foreclosure cause of action are: (1) the trustee or mortgagee caused an illegal, fraudulent, or willfully oppressive sale of real property pursuant to a power of sale in a mortgage or deed of trust; (2) the party attacking the sale (usually but not always the trustor or mortgagor) was prejudiced or harmed; and (3) in cases where the trustor or mortgagor challenges the sale, the trustor or mortgagor tendered the amount of the secured indebtedness or was excused from tendering." (*Sciarratta v. U.S. Bank Natl. Assn.* (2016) 247 Cal.App.4th 552, 561-562, internal citation and quotation marks omitted.) The complaint alleges seven independent bases for its sixth cause of action, several all of which appear to relate to one of either (1) alleged violations of Civil Code section 2924m, (2) alleged violations of a bankruptcy stay; (3) the circumstances surrounding TCU's alleged reconveyance; and (4) insufficient posting under Civil Code section 2924f. (Complaint, ¶ 69.) The Court, as it has already discussed, has found each of these allegations insufficiently pled for different reasons. This leaves the complaint's "failure to disclose" and "bid substitution" allegations. Unlike the fourth cause of action, the complaint's sixth cause of action fails to allege what undisclosed "material" information forms the basis for the cause of action. The complaint's conclusory allegation is insufficient. (*Mitchell, supra*, 1 Cal.App.5th at p. 1007 ["We treat the demurrer as admitting all material facts properly pleaded but not contentions, deductions or conclusions of fact or law."].) The complaint also repeatedly references a "bid substitution" scheme. (See Complaint, ¶¶ 7, 43-44, 58, 64, 69.) These allegations appear to

allege a violation of Civil Code section 2924m, but the Court again notes that Shinde does not respond to PLM's argument on demurrer and direct the Court to any relevant language in Civil Code section 2924m addressing the issue. (See Reply, p. 7:11-18 ["Plaintiff's allegations regarding supposedly prematurely distributing payoff funds to TCU and refunding the bidder at the trustee sale with Ole Pedersen's funds pertain to administrative acts which are not covered by Civil Code § 2924m, nor has the Opposition cited any authority prohibiting such administrative acts because no such authority exists."].) The Court has otherwise also already discussed whether the statute creates a private right of action.

The Court SUSTAINS PLM's demurrer to the seventh cause of action WITHOUT LEAVE TO AMEND. While a party may obtain injunctive relief if they are otherwise entitled to such relief, a court may nonetheless sustain a demurrer to a cause of action for injunctive relief because it is not actually a cause of action. (*Allen v. City of Sacramento* (2015) 234 Cal.App.4th 41, 65-66; see also *Ivanoff v. Bank of America, N.A.* (2017) 9 Cal.App.5th 719, 734 ["Injunctive relief is a remedy, not a cause of action. A cause of action must exist before a court may grant a request for injunctive relief."], internal citations and quotation marks omitted.)

The Court SUSTAINS PLM's demurrer to the complaint's eighth cause of action WITHOUT LEAVE TO AMEND. A party against whom a complaint has been filed may demur on the ground that the court has no jurisdiction of the subject of the cause of action alleged in the pleading. (Code of Civ. Proc., § 430.10, subd. (a).) 28 U.S.C. section 1334, subdivision (a) states that federal district courts "have original and exclusive jurisdiction of all cases under title 11." (28 U.S.C. § 1334, subd. (a).) Moreover, 28 U.S.C. section 157 provides that "[b]ankruptcy judges may hear and determine all cases under title 11 and all core proceedings arising under title 11." (28 U.S.C. § 157, subd. (b)(1).) "Core proceedings" include "motions to terminate, annul, or modify [an] automatic stay." (28 U.S.C. § 157(b)(2)(G).) Taking these statutory provisions into account, the Court agrees with PLM that it lacks jurisdiction to determine whether PLM has violated an automatic stay that took effect upon Shinde filing a voluntary petition for relief in the United States Bankruptcy Court for the Northern District of California. (Complaint, ¶¶ 75-84.) Furthermore, Shinde does not appear to offer any response to PLM's jurisdiction argument, instead contending that if the Court has "any concern about the eighth cause of action, any ruling should be limited to that count." (Opposition, pp. 9:17-10:8.)

The Court will prepare the final order.

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